

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, May 21, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, May 21, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-01534	Mathew Carvalho vs Lucia Rocha
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Motion to Add Judgment Defendants Pursuant to CCP 187

Plaintiff's motion to add judgment defendants pursuant to Code of Civil Procedure section 187 is DENIED.

Plaintiff's request for judicial notice, filed April 15, 2026, is GRANTED.

Plaintiff's request for judicial notice, filed May 14, 2026, is GRANTED.

To prevail on the motion, the judgment creditor must show, by a preponderance of the evidence, that: "(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone." (*Highland Springs Conference & Training Center v. City of Banning* (2016) 244 Cal.App.4th 267, 280.)

Here, the analysis stops at step 1. There is no evidence that the judgment debtor to be added, Deanna M. Carvalho Rocha, “had control of the underlying litigation and were virtually represented in that proceeding.” (*Highland, supra*, at p. 280.)

This is especially true where judgment was entered by default as it would result in a denial of due process of law. (See *Motores De Mexicali v. Superior Court* (1958) 51 Cal.2d 172, 176 [“To summarily add [individuals] to the judgment heretofore running only against [the corporation], without allowing them to litigate any questions beyond their relation to the allegedly alter ego corporation would patently violate this constitutional safeguard. . . . They were under no duty to appear and defend personally in that action, since no claim had been made against them personally.”]; see also *Wolf Metals Inc. v. Rand Pacific Sales, Inc.* (2016) 4 Cal.App.5th 698, 709 [“[Defendant] offered no defense to [Plaintiff’s], suit and the judgment against it was entered by default. Accordingly, the trial court erred in amending the default judgment to include appellants as judgment debtors on the basis of an ‘alter ego’ theory.”].)

Motores and *Wolf Metals* are not inapposite as argued by Plaintiff on reply. The facts here are similar to that in *Motores* and *Wolf Metals* in that the judgment debtor to be added was not named in the underlying lawsuit, and as judgment was entered by default had no opportunity to offer a defense. In short, Ms. Rocha’s interests were not represented in the underlying action. Providing an opposition to the instant motion does not cure this and is not equivalent to defending the underlying lawsuit on which the default judgment is based.

Accordingly, the motion is denied.

25CV-03544 Samir Soliman vs BSR Trucking Inc., et al.

Motion to be Relieved as Counsel

Appearance required.

Counsel for Ravi Gora are to appear to address the attorney declaration filed on April 22, 2026.

25CV-04165 Tamela Qualls vs Department of Motor Vehicles

Writ of Mandate

Appearance required.

25CV-04477 Nicolas Martinez, et al. vs Angelica Cavagna, et al.

Order to Show Cause re: Sanctions

Appearance required.

Case Management Conference

Appearance required.

25CV-06951 In the Matter of: Richard Sebastian Macias

Hearing in Camera re: Request to Challenge Disqualified Person Determination

Appearance required.

26CV-02332 Cynthia Hidalgo vs Julissa Rodriguez

OSC re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Matters
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, May 21, 2026
10:00 a.m.

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Case No.	Title / Description
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21CV-03369	Veronica Padron vs Bhavesh Patel, et. al.
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Ex Parte: for an Order Shorten Time for a Hearing on Her Motion for Terminating Sanctions Against Defendant Bhavesh Patel

Appearance Required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, May 21, 2026
10:00 a.m.

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Case No.	Title / Description
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24CV-05252	Midland Credit Management, Inc. vs. Cristina Bernal
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Trial Setting Conference

Appearance required.

25CV-00126	Wells Fargo Bank, N.A. vs. Jesus Pulido
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Motion for Judgment on the Pleadings

(Continued from May 19, 2026.)

The unopposed motion for judgment on the pleadings by plaintiff Wells Fargo Bank, N.A., is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute causes of action for breach of written contract and breach of implied in fact contract against defendant

Jesus Pulido. Defendant's answer admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The trial scheduled for October 21, 2026, is vacated.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Order
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, May 21, 2026
11:00 a.m.

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Case No.	Title / Description
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26CV-01951	Stephanie Huerta Morales vs. Shauna Mathias
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Order to Show Cause Re: Restraining Order

Appearance required.

26CV-02269	Maria Velasquez vs. Sylvia Lechuga
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Court Trial

Appearance required.

26CV-02155	Sergio Barron Aguayo vs. Mona Rivera
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Order to Show Cause Re: Restraining Order

Appearance required.
